

EXHIBIT B

IN THE CIRCUIT COURT OF LAWRENCE COUNTY, ARKANSAS
CIVIL DIVISION

SHERRY HARRIS

VS.

CASE NO.: CV-2021-63

EDWARD HENDRIX, INDIVIDUALLY, AND
EDDIE'S PILOT CAR SERVICE LLC

FILE
PLAINTIFF
JUN 23 2021
1:30pm
Miller Circuit Clerk
Lawrence Co. AR
DEFENDANTS

COMPLAINT

COMES NOW Plaintiff, Sherry Harris, by and through her attorneys, McDaniel Law Firm, PLC, and for her Complaint against Defendants, Edward Hendrix, and Eddie's Pilot Car Service LLC, states as follows:

1. That at the time of the occurrence referred to herein, Plaintiff, Sherry Harris, was and is a resident of Alicia, Lawrence County, Arkansas.
2. That at the time of the occurrence referred to herein, Defendant, Edward Hendrix, was a resident of Advance, Stoddard County, Missouri.
3. That at the time of the occurrence referred to herein, Defendant, Edward Hendrix, was operating a vehicle in the course and scope of his employment by Eddie's Pilot Car Service LLC.
4. That the collision out of which this cause of action arises occurred in Lawrence County, Arkansas.

5. That Eddie's Pilot Car Service LLC, at the time of this occurrence was an LLC operating for profit and existing under the laws of the State of Missouri.

6. That this Court has jurisdiction over this cause and the parties hereto and that venue of this action is properly placed with this Court.

7. That on or about December 29, 2019, at approximately 2:16 PM, Plaintiff, Sherry Harris, was traveling northbound on US Highway 67 in the outside lane in a 2015 Chevrolet Impala.

8. That at approximately the same time on December 29, 2019, Defendant, Edward Hendrix, was traveling northbound directly behind Plaintiff on US Highway 67 in the outside lane in a 2018 Dodge Ram pickup truck.

9. That Defendant's vehicle struck Plaintiff's passenger-side rear bumper with the front driver-side bumper of Defendant's vehicle, forcing Plaintiff to cross over into the median, rotate counterclockwise, and to come to a final rest against a cable barrier facing southbound.

10. That after the impact, Defendant's vehicle left the roadway, entered the ditch on the north side of the highway, rotated counterclockwise causing his vehicle to overturn several times, coming to rest on its right side off of US Highway 67 facing northwest.

11. That Defendant, Edward Hendrix, was negligent in the operation of his vehicle, which was the proximate cause of the occurrence and damages to Plaintiff, Sherry Harris, in the following particulars, including, but not limited to the following:

- (a) That Defendant, Edward Hendrix, negligently failed to operate his vehicle at a reasonable speed for the circumstances then and there existing;
- (b) That Defendant, Edward Hendrix, negligently failed to maintain a proper lookout under the circumstances then and there existing;
- (c) That Defendant, Edward Hendrix, negligently failed to maintain proper control of his vehicle for the circumstances then and there existing;
- (d) That Defendant, Edward Hendrix, negligently failed to yield the right of way to the forward vehicle occupied by Plaintiff;
- (e) That Defendant, Edward Hendrix, was negligently following too close to Plaintiff's vehicle; and,
- (f) That Defendant, Edward Hendrix, negligently failed to operate his vehicle in a safe and reasonable manner under the circumstances then and there existing.

12. That the negligence of Defendant, Edward Hendrix, was the proximate cause of the damages suffered by Plaintiff.

13. That the negligence of Defendant, Edward Hendrix, is imputed to Defendant, Eddie's Pilot Car Service LLC, by the doctrine of respondeat superior.

14. That Plaintiff, Sherry Harris, as a proximate result of the negligence of Defendant, Edward Hendrix, sustained injuries to her person, including, but not limited to, her right shoulder, left shoulder blade, lower back, left wrist and hip, neck, and other injuries.

15. That as a proximate result of the negligence of Defendant, Plaintiff, Sherry Harris, has expended or has been obligated to expend certain sums of money for medical care and treatment in the past and will be required to expend or be obligated to

expend certain sums of money for medical care in the future; has experienced pain, suffering, discomfort and mental anguish in the past and will experience pain, suffering, discomfort and mental anguish in the future; her physical injuries and symptoms are ongoing and permanent in nature; she has lost earnings and earnings capacity in the past and will lose earnings and earnings capacity in the future; for her property damage as her vehicle was a total loss, and, for all of which she should have and recover judgment from and against Defendant in an amount in excess of the amount required for federal court diversity jurisdiction.

16. That Plaintiff was guilty of no contributory negligence or comparative fault in causing her own injuries and damages.

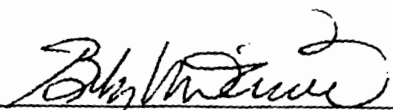
17. That Plaintiff reserves the right to amend and plead further in this action.

18. That Plaintiff prays for a jury trial in this cause.

WHEREFORE, Plaintiff prays she have judgment from and against Defendants in an amount in excess of that required for the minimum amount necessary for federal court diversity jurisdiction for compensatory damages, for her costs, and all other relief to which she may be entitled.

Respectfully submitted,

McDANIEL LAW FIRM, PLC
Attorneys at Law
400 South Main
Jonesboro, AR 72401
Ph: (870) 336-4747
Fax: (870) 932-0919
Email: bobby@mcdaniellawyers.com

By: 
Bobby McDaniel/Arkansas Bar #72083

McDANIEL
LAW FIRM, PLC
400 SOUTH MAIN
JONESBORO, AR 72401
(870) 336-4747
FAX (870) 932-0919